

Electricity Act 2003 — §126/§135 Jurisprudence Map

Aggregation pass over 12 case-records · combined from provision_index · issue_matrix · citation_graph

12 records

12 provisions

10 issue-nodes

44 authority citations

0 in-corpus edges

🔑 **Backbone finding:** the single most load-bearing authority across the corpus is **Executive Engineer (SOUTHCO) v. Seetaram Rice Mill (2012) 2 SCC 108** — **cited by 6 of 12 records** (5× followed). It is **not yet a record** → it is the #1 Supreme-Court-wave target.

1 · Provision index — every holding grouped by section, oldest – newest, with the statutory version applied

▶ s.49 — 1 holdings (1 ratio) · 1 cases pre-2003					
▶ s.56 — 1 holdings (1 ratio) · 1 cases post-2007					
▶ s.125 — 1 holdings (1 ratio) · 1 cases post-2007					
▼ s.126 — 28 holdings (26 ratio) · 10 cases post-2007 pre-2007					
Case	Yr	as	issue-node	type	holding
HC-008	2006	s.126(3) pre-2007	natural-justice	ratio	An assessment for unauthorised use / DAE must be preceded by inspection and a reasonable hearing; the licensee is bound by the principles of natural justice (Section 126(3) read with Reg. 25(viii)).
HC-008	2006	s.126 pre-2007	burden-proof · natural-justice	ratio	A suspicion of unauthorised use / DAE must be corroborated by the consumer's consumption pattern; that corroboration is a precondition to the exercise of assessment jurisdiction, and where consumption exceeds ~75% of the assessed figure no action can be taken. A missing seal or broken glass alone will not do.
HC-008	2006	s.126(3) pre-2007	natural-justice	ratio	The show-cause notice must precisely and unambiguously state the allegations on which action is proposed; a notice that keeps the real basis (here, the consumption-pattern / two-shift-use finding) from the consumer fails the standard of fairness.
HC-006	2008	s.126 post-2007	126v135	explanatory	Section 126 excludes mens rea and fastens civil liability; unauthorised use of electricity is different from theft, which is a criminal offence under Section 135.
SC-001	2013	s.126 post-2007	jurisdiction-145-154 · assessment-126	ratio	A final assessment under Section 126 for 'unauthorised use of electricity' is a quasi-judicial decision by a public servant; it is not a 'consumer dispute' under Section 2(1)(e) of the Consumer Protection Act, 1986, and cannot be challenged by a consumer complaint.

Case	Yr	as	issue-node	type	holding
SC-001	2013	s.126 post-2007	126v135	explanatory	The same acts of 'unauthorised use of electricity' attract a civil consequence (penal assessment at twice the tariff) under Section 126 and simultaneously constitute offences under Sections 135–140 — the two operate in parallel on the same conduct.
HC-003	2014	s.126 post-2007	126v135 · assessment-126	ratio	'Unauthorised use of electricity' (s.126) is the genus of which the theft acts in s.135(1) are species; theft is unauthorised use done dishonestly. A Section 126 assessment therefore has to follow in every case of unauthorised use, including theft — neither section excludes the other.
HC-003	2014	s.126(3) post-2007	natural-justice · provisional-final	ratio	A final assessment must be passed within thirty days of the provisional order under Section 126(3); a final order passed about two years later, without a fresh opportunity of hearing, violates natural justice and cannot be sustained.
HC-009	2016	s.126 / s.135 post-2007	126v135	ratio	Sections 126 and 135 operate in different fields: Section 126 is invoked for over-consumption / unauthorised use of electricity, whereas Section 135 is invoked for theft of electricity.
HC-009	2016	s.126 / s.154(5) post-2007	126v135 · jurisdiction-145-154	ratio	Section 126 cannot be applied to assess the amount to be charged for theft of electricity; the civil liability for theft is measured under the Section 154(5) formula (twice the tariff for the twelve months preceding detection, or the exact period of theft if determined, whichever is less), subject to final adjudication by the Special Court.
HC-010	2017	s.126(1) post-2007	assessment-126 · natural-justice	ratio	The physical presence of the assessing officer at the time of inspection and detection of unauthorised use is not a mandatory precondition for initiating assessment proceedings under Section 126(1).
HC-010	2017	s.126 post-2007	assessment-126 · mensrea-135	ratio	'Unauthorised use of electricity' under Section 126 covers cases of unauthorised use even without intention; the consumer's intention is not the foundation for an assessment order under Section 126 (mens rea is a Section 135 concept).
HC-010	2017	s.126(6) post-2007	assessment-126	ratio	A consumer who consumes electricity in excess of the sanctioned/connected load (breach of the agreement, Regulations and the Act) is liable to pay at the rate equal to twice the tariff applicable for the relevant category of services.
HC-010	2017	s.126(6) post-2007	assessment-126	ratio	The word 'tariff' in Section 126(6) includes BOTH fixed charges and energy charges; the assessment is at twice that tariff for the relevant category of services under sub-section (5).
HC-010	2017	s.126(6) post-2007	assessment-126	ratio	Where electricity of one category is unauthorisedly used for a higher-tariff purpose, the assessment is twice the tariff applicable to that higher-tariff category for which it was used — not twice the tariff of the category to which the consumer nominally belongs.
HC-010	2017	s.126(6) post-2007	assessment-126	ratio	MARQUEE EXCEPTION: where the consumer is only blamed with overdrawal in excess of sanctioned/connected load in the same premises and for the same purpose (no change in the tariff category), and the excess consumption has already been metered and paid, the assessment under Section 126(6) can only be twice the FIXED charges — the consumer cannot be saddled with twice the energy charges — unless regularising

Case	Yr	as	issue-node	type	holding
					the additional load necessitates upgradation of the distribution system or enhancement of the voltage level.
HC-011	2017	s.126(1) post-2007	assessment-126 · natural-justice	ratio	The condition precedent to a provisional assessment under Section 126(1) is a conclusion by the Assessing Officer that the person is indulging in unauthorised use; that satisfaction cannot rest on the officer's mere 'vagaries' without a fair opportunity of hearing in defence.
HC-011	2017	s.126 / s.135 post-2007	natural-justice	ratio	Principles of natural justice apply to proceedings for unauthorised use of electricity (which may in some cases also amount to an investigation under Section 135) unless excluded by the Act expressly or by necessary implication.
HC-011	2017	s.126(3) post-2007	natural-justice · provisional-final	ratio	A final assessment made without considering the consumer's objections and without a personal hearing (as required by Section 126(3) and Clause 8.1(b)(iii) of the 2005 Code) is de hors the statutory provision and cannot stand.
HC-011	2017	s.126 post-2007	provisional-final	ratio	Absent a lawful final assessment made after considering objections and hearing, the consumer cannot be compelled to deposit the provisional amount.
HC-018	2017	s.126(1) post-2007	natural-justice · assessment-126	ratio	An inspection alleging unauthorised use under Section 126 should be conducted in the presence of the consumer (a signatory to the inspection report); the licensee's failure to show the night inspection was in the consumer's presence undermined its case.
HC-018	2017	s.126(5) post-2007	assessment-126	ratio	The Section 126(5) 12-month cap applies only where the period of unauthorised use is not ascertainable; where the period is ascertained (as here, and reduced by the Appellate Authority), the assessment is confined to that ascertained period.
HC-014	2020	s.126 Explanation (b)(iv) post-2007	assessment-126	ratio	Consumption in excess of the sanctioned contract demand, causing a change of tariff category (LT to HT), is 'unauthorised use of electricity' squarely covered by Explanation (b)(iv) to Section 126; the consumers' cases stood clearly covered under Section 126.
HC-014	2020	s.126 post-2007	assessment-126 · mensrea-135	ratio	Following Seetaram Rice Mill (para 35), intention is not the foundation for invoking Section 126; all that need be ascertained is whether the consumer exceeded the contract load resulting in usage beyond it.
HC-014	2020	s.126 post-2007	assessment-126	ratio	Even where penalty @150% has already been levied for exceeding the contract demand under the Regulatory Commission's tariff order, the consumer remains liable to pay charges for unauthorised use of electricity under Section 126.
HC-017	2022	s.126 / s.135 post-2007	126v135	ratio	Unauthorised use of electricity (Section 126) is the genus and theft (Section 135) is one of the species thereunder; the two operate in different fields.
HC-017	2022	s.126 post-2007	126v135 · burden-proof	ratio	A Section 126 assessment is a civil enquiry to be decided on the standard of preponderance of probability, whereas Section 135 theft requires proof beyond reasonable doubt with mens rea; the yardsticks are distinct.
HC-017	2022	s.126 / s.135 post-2007	126v135 · mensrea-135	ratio	An acquittal on a Section 135 theft charge (tested on proof beyond reasonable doubt) does not ipso facto exonerate the consumer from civil liability

Case	Yr	as	issue-node	type	holding
					under Section 126 (tested on the more liberal preponderance of probability).

▼ **s.127** — 6 holdings (6 ratio) · 5 cases post-2007

Case	Yr	as	issue-node	type	holding
SC-001	2013	s.127 post-2007	appeal-127	ratio	The remedy against a final Section 126 order is an appeal to the appellate authority under Section 127, entertained only on deposit of half the assessed amount; the appellate order is final.
HC-003	2014	s.127 post-2007	appeal-127	ratio	A Section 126 final assessment in a theft case is appealable under Section 127 (following Paliwal Alloys); a writ was nonetheless entertained here because jurisdiction was challenged and the order breached natural justice.
HC-018	2017	s.127 post-2007	appeal-127	ratio	A Section 127 appeal is not barred by limitation where the delay is attributable to the consumer's bona fide pursuit of a writ petition and writ appeal in the wrong forum; Section 14 of the Limitation Act applies to exclude that period (the Electricity Act being a special law under Section 29(2) that does not expressly exclude Section 14).
HC-018	2017	s.127 / s.125 post-2007	appeal-127	ratio	Section 125 (appeal to the Supreme Court from the Appellate Tribunal, Part XI) and Section 127 (appeal to the appellate authority from a Section 126 assessment, Part XII) are totally different and operate in different contexts; authority on Section 125 limitation does not govern a Section 127 appeal.
HC-014	2020	s.127 post-2007	appeal-127 · assessment-126	ratio	Where the High Court has remanded a Section 127 appeal confined to quantum, the Appellate Authority cannot re-open the settled question whether Section 126 applies; the only question open to it is the quantum of assessment in the final bills.
HC-017	2022	s.127 post-2007	appeal-127 · provisional-final	ratio	A consumer who bypasses the Section 127 appeal (which requires a 50% pre-deposit) cannot obtain from the writ court, indirectly, the restoration he could not get from the appellate forum; there is no unqualified restoration without complying with the final assessment.

▼ **s.135** — 7 holdings (6 ratio) · 5 cases post-2007

Case	Yr	as	issue-node	type	holding
SC-001	2013	s.135 post-2007	mensrea-135 · jurisdiction-145-154	ratio	Offences under Sections 135–140 (theft and allied acts) are triable only by a Special Court constituted under Section 153; a Consumer Forum has no jurisdiction over any action taken under Sections 135–140.
HC-003	2014	s.135(1) 6th proviso post-2007	126v135	explanatory	The 'assessed amount' in the sixth proviso to Section 135(1) (on payment of which supply is restored) is the amount assessed under Section 126 — textual confirmation that assessment is contemplated in theft cases.
HC-009	2016	s.126 / s.135 post-2007	126v135	ratio	Sections 126 and 135 operate in different fields: Section 126 is invoked for over-consumption / unauthorised use of electricity, whereas Section 135 is invoked for theft of electricity.
HC-009	2016	s.135 post-2007	natural-justice · mensrea-135	ratio	A show-cause notice / opportunity of hearing is required only where theft is suspected (broken/tampered seals, no evidence at site — per Circular 54/2007); where the theft is 'writ large' (here a dead-stop meter with a soldered wire after breaking the counter lock), no opportunity of hearing need be given before proceeding.

Case	Yr	as	issue-node	type	holding
HC-011	2017	s.126 / s.135 post-2007	natural-justice	ratio	Principles of natural justice apply to proceedings for unauthorised use of electricity (which may in some cases also amount to an investigation under Section 135) unless excluded by the Act expressly or by necessary implication.
HC-017	2022	s.126 / s.135 post-2007	126v135	ratio	Unauthorised use of electricity (Section 126) is the genus and theft (Section 135) is one of the species thereunder; the two operate in different fields.
HC-017	2022	s.126 / s.135 post-2007	126v135 · mensrea-135	ratio	An acquittal on a Section 135 theft charge (tested on proof beyond reasonable doubt) does not ipso facto exonerate the consumer from civil liability under Section 126 (tested on the more liberal preponderance of probability).

▼ **s.145** — 7 holdings (7 ratio) · 4 cases post-2007

Case	Yr	as	issue-node	type	holding
HC-006	2008	s.145 post-2007	jurisdiction-145-154	ratio	Section 145's express bar on civil-court jurisdiction operates only in respect of Section 126 (assessment) and Section 127 (appeal) matters — not theft under Section 135.
HC-006	2008	s.145 post-2007	jurisdiction-145-154	ratio	The Electricity Act is a complete code; the civil court's jurisdiction is by necessary implication barred, and a consumer cannot approach a civil court without exhausting the alternative remedies the Act provides.
SC-001	2013	s.145 post-2007	jurisdiction-145-154	ratio	Section 145 bars civil courts over any matter an assessing officer (Section 126) or appellate authority (Section 127) may determine; read with Sections 173–174, the phrase 'other authority' does not include the Consumer Fora, which are therefore also ousted.
HC-016	2013	s.145 post-2007	jurisdiction-145-154	ratio	The question whether the civil court's jurisdiction is barred by Section 145 (matters an assessing officer under Section 126 or appellate authority under Section 127 may determine) goes to the root of the matter and must be decided before a civil court adjudicates an unauthorised-abstraction suit.
HC-016	2013	s.145 post-2007	jurisdiction-145-154	ratio	The Section 145 bar can be agitated by the respondent-defendant (licensee) in the first appeal even without filing a cross-appeal or cross-objection against the trial court's finding on jurisdiction.
HC-016	2013	s.145 post-2007	jurisdiction-145-154	ratio	Section 145 effects an absolute exclusion of the civil court's jurisdiction over unlawful-abstraction assessment matters; the appeal is remanded for that question to be decided.
HC-017	2022	s.145 post-2007	jurisdiction-145-154	ratio	Section 145 bars civil-court interference in respect of assessments under Sections 126 and 127; a Section 135 FIR instead leads to a Section 154 Special Court criminal action, with civil liability under Section 154(5) independent of and subject to the Section 126 deposit (Section 154(6)).

► **s.152** — 1 holdings (1 ratio) · 1 cases post-2007

► **s.153** — 1 holdings (1 ratio) · 1 cases post-2007

► **s.154** — 4 holdings (4 ratio) · 3 cases post-2007

► **s.173** — 1 holdings (1 ratio) · 1 cases post-2007

2 · Issue matrix — line of authority + leading case per issue-node

▼ **126v135** — 6 cases · lead **SC-001** (SC)

line of authority: **HC-013** HC·2002 → **HC-006** HC·2008 → **SC-001** SC·2013 → **HC-003** HC·2014 → **HC-009** HC·2016 → **HC-017** HC·2022

HC-006 HC-DB-binding (Delhi) affirms

Section 126 (unauthorised use — civil, no mens rea) and Section 135 (theft — criminal, dishonesty) operate in different fields.

SC-001 SC-binding explains

Section 126 (civil assessment) and Sections 135–140 (criminal offences) apply in parallel to the same act of unauthorised use; a Section 126 assessment is a civil/quasi-judicial consequence, not a criminal adjudication.

HC-003 HC-DB-binding (Allahabad) affirms-extends

An assessment under Section 126 must be made even where a Section 135 theft offence has been booked and is pending before the Special Court; the Special Court's civil-liability determination under Section 154(5) does not oust the assessing officer's Section 126 power. The two tracks (civil assessment + criminal trial) run in parallel.

HC-009 HC-SB (Punjab & Haryana) applies

Sections 126 and 135 operate in different and distinct fields; theft under Section 135 cannot be assessed under Section 126, and its civil liability is measured under the Section 154(5) formula, subject to final adjudication by the Special Court.

HC-017 HC-SB (Calcutta) settles

Because unauthorised use (Section 126, civil, preponderance of probability) is the genus and theft (Section 135, criminal, proof beyond reasonable doubt + mens rea) only a species, an acquittal on a theft charge does not ipso facto extinguish civil liability under Section 126; the two channels operate on separate footings.

▼ **appeal-127** — 5 cases · lead **SC-001** (SC)

line of authority: **SC-001** SC·2013 → **HC-003** HC·2014 → **HC-018** HC·2017 → **HC-014** HC·2020 → **HC-017** HC·2022

HC-018 HC-SB (Orissa) settles

The limitation for a Section 127 appeal against a Section 126 assessment is subject to Section 14 of the Limitation Act (Electricity Act being a special law under Section 29(2)): time spent bona fide pursuing a writ remedy in the wrong forum is excluded, so the appeal is not time-barred; Section 125 (SC appeal from the Appellate Tribunal) is distinct and its limitation authority does not apply.

HC-014 HC-SB (Bombay, Nagpur Bench) settles

On a Section 127 appeal remanded solely on quantum, the Appellate Authority is bound by the finding that Section 126 applies and cannot re-litigate applicability; its remit is confined to the quantum of assessment.

HC-017 HC-SB (Calcutta) affirms

A consumer who forgoes the Section 127 appeal (and its 50% pre-deposit) and lets the assessment attain finality cannot secure unqualified restoration of supply via a writ; Section 145 bars civil-court interference with Section 126/127 assessments.

▼ **assessment-126** — 6 cases · lead **SC-001** (SC)

line of authority: **SC-001** SC·2013 → **HC-003** HC·2014 → **HC-010** HC·2017 → **HC-011** HC·2017 → **HC-018** HC·2017 → **HC-014** HC·2020

HC-010 HC-DB (Kerala) settles

Under Section 126(6) 'twice the tariff' ordinarily embraces both fixed and energy charges, and higher-tariff misuse is assessed at twice the higher tariff; but where the sole irregularity is excess load in the same premises for the same purpose (no tariff change) and the energy is already metered and paid, the penalty is confined to twice the fixed charges, absent a need to upgrade the distribution system/voltage.

HC-010 HC-DB (Kerala) affirms

Section 126 assessment is intention-neutral (no mens rea); the assessing officer's presence at inspection is not a mandatory precondition to initiating proceedings.

HC-018 HC-SB (Orissa) affirms

A Section 126 inspection alleging unauthorised use should be conducted in the consumer's presence; and the Section 126(5) 12-month cap applies only where the period of unauthorised use is unascertainable.

HC-014 HC-SB (Bombay, Nagpur Bench) applies

Consuming electricity beyond the sanctioned contract demand, resulting in a change of tariff category, is unauthorised use under Explanation (b)(iv) to Section 126 (Seetaram Rice Mill); the assessment follows Sections 126(3)-(6), and prior payment of a contract-demand penalty is no bar to it.

► **burden-proof** — 2 cases · lead **HC-008** (HC)► **compounding-152** — 1 cases · lead **HC-009** (HC)▼ **jurisdiction-145-154** — 6 cases · lead **SC-001** (SC)

line of authority: **HC-006** HC·2008 → **SC-001** SC·2013 → **HC-016** HC·2013 → **HC-003** HC·2014 → **HC-009** HC·2016 → **HC-017** HC·2022

HC-006 HC-DB-binding (Delhi) settles-explains

In an electricity-theft case, the civil court's jurisdiction to entertain a suit challenging the theft bill / civil liability is impliedly ousted by Sections 153–154 (Special Court), even where no criminal complaint is filed; Section 145's express bar is confined to Section 126/127 assessment matters. The plaint was rightly rejected, though for different reasons than the Single Judge gave.

SC-001 SC-binding settles-split

A consumer complaint challenging a Section 126 assessment or any Sections 135–140 action is not maintainable before a Consumer Forum; the statutory remedies (Section 127 appeal; Special Court under Section 153) are exclusive of the consumer route.

HC-016 HC-SB (Rajasthan) affirms

Section 145 excludes the civil court's jurisdiction over matters an assessing officer (Section 126) or appellate authority (Section 127) is empowered to determine; a court entertaining an unauthorised-abstraction suit must decide that jurisdictional bar first, and the licensee may raise it as respondent without a cross-appeal.

► **limitation-56** — 1 cases · lead **HC-003** (HC)▼ **mensrea-135** — 5 cases · lead **SC-001** (SC)

line of authority: **SC-001** SC·2013 → **HC-009** HC·2016 → **HC-010** HC·2017 → **HC-014** HC·2020 → **HC-017** HC·2022

▼ **natural-justice** — 7 cases · lead **HC-013** (HC)

line of authority: **HC-013** HC·2002 → **HC-008** HC·2006 → **HC-003** HC·2014 → **HC-009** HC·2016 → **HC-010** HC·2017 →

HC-013 HC-DB (Patna) settles

Under a statutory tariff clause, disconnection of supply on detecting excess-load/theft may be effected without prior notice (natural justice yielding to the urgency of protecting the Board's property), but the ensuing assessment of the value of energy and compensation must be made only after a hearing.

HC-008 HC-SB (Delhi) applies

In a Section 126 unauthorised-use / DAE proceeding the show-cause notice must precisely disclose the grounds — including the consumption-pattern basis relied on — and the licensee must grant a real hearing; a demand founded on seal/glass irregularities without that disclosure or corroboration is set aside and remitted.

HC-003 HC-DB-binding (Allahabad) applies

A final assessment under Section 126 passed beyond the 30-day window in Section 126(3) — here two years after the provisional notice and without a fresh hearing — is void for breach of natural justice and is set aside with a direction to reassess after hearing objections.

HC-009 HC-SB (Punjab & Haryana) settles

A pre-assessment hearing in a theft case is required only where theft is merely suspected; where theft is 'writ large' on the checking report, no opportunity of hearing need be afforded before the licensee proceeds.

HC-011 HC-DB (Allahabad) affirms

A Section 126 assessment is subject to natural justice: the provisional assessment presupposes a lawful conclusion of unauthorised use, and a final assessment (or any coerced deposit) is invalid unless the consumer's objections are considered and a personal hearing given, per Section 126(3) and Clause 8.1 of the 2005 Supply Code.

▼ provisional-final — 4 cases · lead HC-011 (HC)

line of authority: HC-013 HC·2002 → HC-003 HC·2014 → HC-011 HC·2017 → HC-017 HC·2022

3 · Citation backbone — authorities the corpus repeatedly rests on (≥2 records)

freq	authority	treatment	cited by
6×	Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd. (SOUTHCO) v. Sri Seetaram Rice Mill (2012) 2 SCC 108 · Supreme Court (3-Judge)	{'referred': 1, 'followed': 5}	HC-016 referred, HC-009 followed, HC-010 followed, HC-018 followed, HC-014 followed, HC-017 followed
2×	Ashok Kumar v. State of U.P. 2008 (6) ADJ 669 · Allahabad High Court (DB)	{'followed': 2}	HC-003 followed, HC-011 followed